

OneMain Financial Group, LLC v. Marnie Krouse, 24LC-0666

Hearing: Motion to Vacate Dismissal

Date: July 1, 2026

OneMain Financial Group, LLC (Plaintiff) filed a collections action against Marnie Krouse (Defendant) on June 27, 2024. The Clerk issued a Notice of Assignment and Order to Show Cause (OSC) Re Sanctions on that date, setting the OSC for June 30, 2025.

Defendant was personally served with the summons and complaint on July 1, 2024. Defendant did not file a responsive pleading. Defendant's default was entered on January 10, 2025. On March 17, 2025, the Clerk returned Plaintiff's proposed judgment to resubmit "with additional declaration breakdown and/or information regarding attorney's fees." (Notice, 3/17/25.)

The OSC was held on June 30, 2025, Plaintiff's counsel appeared and requested a continuance. (Minutes, 6/30/25.) On September 8, 2025, Plaintiff filed a request to continue the OSC and the Court continued the OSC to December 15, 2025. (Order, 9/9/25.)

On November 19, 2025, Plaintiff submitted an additional request for continuance; however, the Court denied this request. On December 15, 2025, Plaintiff's counsel attended the OSC, and the Court and counsel discussed resubmission of a default packet and dismissal of the case. (Minutes, 12/15/25.) The Court ordered the matter dismissed without prejudice. (*Ibid.*)

Plaintiff has now timely filed a motion to vacate the dismissal pursuant to Code of Civil Procedure section 473(b). The motion was served on Defendant via mail and no opposition is on file. Plaintiff seeks to have the dismissal vacated on the grounds of counsel's inadvertence or excusable neglect, so that the Court may consider Defendant's default judgment packet.

Plaintiff's counsel declares that Defendant was personally served on July 1, 2024. (Agne Dec., ¶ 3.) Defendant did not file a responsive pleading, and Plaintiff filed a default judgment packet on January 10, 2025. (*Id.*, ¶ 4.) Plaintiff's default judgment packet was rejected in June 2025 due to the omission of an Attorney's Fees Declaration. (*Id.*, ¶ 5.) Plaintiff requested continuances to file an amended default judgment packet. (See *Id.*, ¶ 6.) Plaintiff filed an amended default judgment packet on December 11, 2025. (*Id.*, ¶ 7, Ex. A.) At the OSC "held on December 15, 2025, the Court dismissed the instant action due to delay and multiple requests for continuances." (*Id.*, ¶ 8.)

Although the Court finds counsel's multiple continuance requests and delayed submission of the corrected default judgment packet unjustified, it grants the motion. (See Weil & Brown, *Cal. Practice Guide: Civil Procedure Before Trial* (The Rutter Group 2026) ¶ 11:300 [Code of Civil Procedure section 473, subdivision (b) "mandates setting aside a dismissal where an application for relief is based on an attorney affidavit of fault 'attesting to his or her mistake, inadvertence, surprise, or neglect' "].)